Jagdish Seth vs State Of U.P. And Another on 4 December, 2024

Author: Dinesh Pathak

Bench: Dinesh Pathak

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:190756

Court No. - 76

Case :- APPLICATION U/S 482 No. - 41692 of 2024

Applicant :- Jagdish Seth

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anurag Upadhyaya

Counsel for Opposite Party :- G.A.

Hon'ble Dinesh Pathak,J.
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1. Heard learned counsel for the applicant and learned A.G.A. for the State.

2. The applicant has invoked the inherent jurisdiction of this Court under Section 482 Cr.P.C. for quashing the impugned order dated 07.10.2024 passed by learned Sessions Judge in Session Trial No. 263 of 2024 (State Vs. Jagdish Seth and Others) arising out of Case Crime No. 173 of 2023, u/s 323, 308 I.P.C., Police Station- Rampur, District- Jaunpur, pending in the Court of Learned Sessions Judge, Jaunpur.

3. As per F.I.R. version, Ajay Kumar Jaiswal (opposite party no.2) has lodged an F.I.R., being Case Crime No. 0173 dated 26.09.2023, levelling allegation of voluntary causing hurt and attempt to commit culpable homicide with an averment that while the first informant went to his field to stop

illegal construction being made by Jagdish Seth (applicant herein), on his exhortation, his brother, sons and nephews had caused severe injuries with brickbats upon the first informant, his younger brother and nephew. After due investigation, Investigating Officer has submitted charge sheet no. A173/23 dated 03.10.2023 arraigning four accused including the present applicant u/s 323 and 308 I.P.C. After service of summons, all the four accused, who are arraigned in the charge sheet, have moved discharge application dated 06.08.2024 (Annexure no. 12) u/s 227 Cr.P.C. with the prayer that they may be discharged u/s 308 I.P.C. Learned Sessions Judge has rejected the aforesaid application, vide order dated 07.10.2024, which is under challenge before this Court.

4. Learned counsel for the applicant has advanced two fold submissions; first, injury no.1 caused to Ajay Kumar Jaiswal may be grievous in nature but not dangerous to life. Second submission is that, essential ingredients of having intention and knowledge to commit culpable homicide is lacking in the instant matter to make out a case u/s 308 I.P.C. against the present applicant. Learned counsel for the applicant has relief upon the case of Bishan Singh and Another Vs. State, (2007) 13 Supreme Court Cases 65, (Criminal Appeal No. 1390 of 2007, decided on 09.10.2007).

5. Learned A.G.A. has vehemently opposed the submissions advanced by learned counsel for the applicant and contended that in the facts and circumstances of the present case coupled with the injury report and the statement of the Doctor, prima facie, a case is made out to be tried u/s 308 I.P.C.

6. Having considered the rival submisions advanced by learned counsel for the parties and perusal of record, it is manifested that in the occurrence of offence first informant and some of his close relatives had sustained injuries with brickbats thrown/assaulted by accused persons. Dr. Prabhat Kumar Yadav has recorded his statement (Annexure no.9), which is a part of case diary, that he has examined all the injured namely Ajay Jaiswal, Rishi Jaiswal and Shatrughan Jaiswal. He has also prepared supplementary report of Ajay Kumar Jaiswal who has sustained grievous injuries which may cause death to him. In the C.T. Scan report of Ajay Kumar Jaiswal, following observation has been made.

Fracture of left zygomatic arch is noted.

Extra calvarial soft tissue swelling is noted in left fronto-temporal region.

Left pre septal edema is noted.

7. Having considered the C.T. Scan report, a supplementary report dated 18.09.2023 (Annexure no.7) has been prepared with an specific observation that there is a fracture of left zygomatic arch, so injury no.1 is grievous in nature. All the witnesses have unequivocally stated that the applicant and his accomplice have badly thrashed to the first informant and his family members inflicting injuries wherein Ajay Kumar Jaiswal has sustained grievous injury on the head and was fainted on the spot. Learned Sessions Judge has returned finding in its order dated 07.10.2024 that as per the discharge card, Ajay Kumar Jaiswal was admitted to the hospital from 25.07.2023 to 28.07.2023 for his medical treatment. Except Ajay Kumar Jaiswal other injured were inflicted simple injuries,

however, he has sustained grievous injuries because of which section 308 I.P.C. has been added.

8. In this view of the matter, first submission advanced by learned counsel for the applicant that injury no.1 may be grievous but not dangerous to life, is not acceptable. Dr. Prabhat Kumar Yadav has unequivocally stated in his statement recorded before I.O. that there is a plausibility of causing death owing to injury no.1. Case of Bishan Singh (supra) relied upon by learned counsel for the applicant is distinguishable from the facts and circumstances of the present case. In the cited case, there was a fracture in the arm of injured. In this backdrop of the fact, Hon'ble Supreme Court has observed that although overt act had been attributed against each of the accused who were having lathi, only seven injuries had been caused and out of them only one was grievous, being fracture on the arm, which was not on the fatal part of the body. (emphasis supplied).

9. I am sceptical of the second submission advanced by learned counsel for the applicant as well that intention and knowledge to commit culpable homicide is lacking in the given circumstances of the present case. Intention and knowledge has to be ascertained from the nature of injuries suffered by the victim. Section 308 I.P.C. stands at a lesser footing when compared to the ingredients of Section 307 I.P.C. If an accused did any act that he would be guilty of culpable homicide not amounting to murder, he shall be guilty of committing an act punishable under Section 308 of I.P.C. Culpable homicide does not amount to murder (a) if the act is done with the intention or knowledge referred to in Section 300 of I.P.C. but under circumstances which would bring the case within one Of the Exceptions mentioned in that section or (b) if the act is done with the intention or knowledge referred to in Section 299 but not falling under clauses (2), (3) and (4) of Section 300 of I.P.C. Thus, if an accused does not intend to cause death or any bodily injury, which he knows to be likely to cause death or even to cause such bodily injury as is sufficient, in the ordinary course of nature, to cause death, Section 308 of I.P.C. would apply even if the case is not covered by any of the exceptions mentioned in Section 300 of I.P.C.

10. Hon'ble Supreme Court in the matter of Sunil Kumar Vs. N.C.T. of Delhi and Others, (1998) 8 Supreme Court Cases 557, has expounded that offence punishable under Section 308 I.P.C. postulates doing of an act with such intention or knowledge and under such circumstances that if one by that act caused death, he would be guilty of culpable homicide not amounting to murder. An attempt of that nature may actually result in hurt or may not. Its attempt to commit culpable homicide which is punishable u/s 308 I.P.C. whereas punishment for simple hurt can be meted out u/s 323 and 324 I.P.C. and for grievous hurts u/s 325 and 326 I.P.C. (emphasis supplied).

11. In this conspectus as above, I am of the considered view that learned Sessions Judge has not committed any error in rejecting the discharge application moved by all the four accused. It is apposite to mention that present application u/s 482 Cr.P.C. has been filed only on behalf of one accused namely Jagdish Seth, however, remaining accused have allowed the order dated 07.10.2024 stands against them. The C.T. Scan report and the statement of Dr. Prabhat Kumar Yadav, coupled with discharge summary of the patient as pointed out of learned Sessions Judge are sufficient to make out prima facie case against the accused u/s 308 I.P.C., which is, of course subject matter of evidence. At this juncture, it would not be befitting to discuss the case in detail regarding the complicity of the present applicant for the commission of crime u/s 308 I.P.C. However, sufficient

material is available on record to make out prima facie satisfaction of the court that the present applicant can be tried for the commission of offence u/s 308 I.P.C. There is neither any abuse of process of court nor sufficient ground to pass an order to secure ends of justice. There is no illegality, perversity or infirmity in the order under challenge so as to warrant the indulgence of this Court in exercise of its inherent jurisdiction under Section 482 Cr.P.C. There is nothing on the record to demonstrate as to how the present applicant is prejudiced, or if there is any likelihood of causing a miscarriage of justice to him, owing to the order under challenge.

12. Resultantly, the instant applicant u/s 482 Cr.P.C., being misconceived and devoid of merits, is dismissed with no orders as to the costs.

Order Date :- 4.12.2024 Sumit K.